

2.	22CV1577	COUNTY OF EL DORADO VS. WANDA H. NAGEL
DETERMINATION OF LEGAL/EVIDENTIARY ISSUES		

This matter before the Court relates to an eminent domain action wherein Plaintiff, County of El Dorado ("Plaintiff"), seeks to acquire a fee simple interest totaling 1,114 square feet (.030 acres), a slope and drainage easement totaling 2,031 square feet (.050 acres), and a 36-month temporary construction easement that covers a one-year warranty period, totaling 8,312 square feet (.190 acres) from the 204,129.72 square feet (4.687 acres) residential parcel located at 4820 Newton Road, Placerville, California.

Trial on the sole issue of the amount of just compensation Plaintiff will pay to Defendant, Wanda H. Nagel, Trustee of the Wanda H. Nagel 1999 Revocable Trust ("Defendant") is set for July 28, 2026. In particular, there is a dispute regarding the amount of severance damages that are due, if any, which are awarded when the remainder property is injured by the acquisition or the construction.

Plaintiff filed a Motion for Determination of Legal/Evidentiary Issues on May 29, 2026, seeking to exclude all testimony of real estate appraiser, Neil Lefmann (Mr. Lefmann), as to severance damages on the following grounds:

1. He incorrectly puts on blinders and ignores the real facts based upon a misunderstanding that he should ignore everything that occurred after the date of value ("DOV") and only consider what was known as of the DOV [December 15, 2022] when determining severance damages;
2. He incorrectly applies the same standard in evaluating temporary and permanent severance damages and, thus, does not differentiate the two when evaluating severance damages; and
3. His methodology is contrary to law, lacks foundation, and is based upon pure conjecture and speculation and is, therefore, inadmissible.

Plaintiff moves under Code of Civil Procedure § 1260.040 to exclude the testimony of Mr. Lefmann regarding severance damages, arguing that his opinion lacks foundation because he employed the sales comparison approach only to determine the before value of the property, but used no recognized methodology or market data to determine the after value. Plaintiff further argues the opinion is speculative because the appraiser relied solely upon his professional judgment and improperly limited his analysis to conditions anticipated as of the date of valuation. Additionally, Mr. Lefmann's failure to differentiate between temporary and permanent severance damages is contrary to law.

Code of Civil Procedure § 1260.040 provides if there is a dispute between plaintiff and defendant over an evidentiary or other legal issue affecting the determination of compensation, either party may move the court for a ruling on the issue. Courts have used Code of Civil

Procedure § 1260.040 to determine whether to exclude testimony based on a disputed valuation method. *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 862.

Code of Civil Procedure § 1263.410(a) mandates that where the property acquired is part of a larger parcel, in addition to compensation for the part taken, compensation shall be awarded for the injury, if any, to the remainder. Damage to the remainder is the damage, if any, caused to the remainder by either or both of the following: a) the severance of the remainder from the part taken; b) the construction and use of the project for which the property is taken in the manner proposed by the plaintiff whether or not the damage is caused by a portion of the project located on the part taken. Code of Civil Procedure § 1263.420.

Such “severance damages” are typically measured by comparing the fair market value of the remainder before and after the taking. (*City of Carlsbad v. Rudvalis*, at p. 679, 135 Cal.Rptr.2d 194; *City of San Diego v. Neumann*, at p. 744, 25 Cal.Rptr.2d 480, 863 P.2d 725.) “In other words, ‘The value of the remaining property taken as a part of the whole, described as the “before condition,” must be compared with the value that portion has as a result of the take and the construction of the improvement in the manner proposed, described as the “after condition.” Damages are computed simply by subtracting the market value of the remainder in its after condition from the market value of the remainder in its before condition.’ ” (*Cushman*, supra, 53 Cal.App.4th at p. 926, 62 Cal.Rptr.2d 121, quoting 1 Condemnation Practice in Cal. (Cont.Ed.Bar 1995) Severance Damages, § 5.9, p. 198.)

City of San Diego v. D.R. Horton San Diego Holding Co., Inc. (2005) 126 Cal.App.4th 668, 680–681

The value of property for which there is no relevant, comparable market may be determined by any method of valuation that is just and equitable. Code of Civil Procedure § 823.

Although Plaintiff correctly states that Mr. Lefmann did not use any comparable market data, the record reflects that Mr. Lefmann explained why such market data was unavailable. He testified that there was no credible market evidence of properties with similar impacts that would enable him to credibly value the remainder in the after condition using direct market data. He further explained that it is very infrequent that an appraiser can independently value the after-condition remainder using direct market data, which was supported by his peers.

Mr. Lefmann testified his opinion was based upon a personal inspection of the property, review of the County's project plans, the Resolution of Necessity, the tree survey, before-condition photographs, Google Earth imagery, and the specific physical impacts the project would have on the remainder, including the temporary construction easement, removal of mature trees, diminished visual screening and privacy, increased roadway exposure, and related effects that a prospective purchaser would consider. He further explained how those project

characteristics would influence the market's perception of the remainder property. While Plaintiff disputes the reliability of those conclusions and the absence of market data, those criticisms go principally to the weight of the testimony rather than its admissibility.

The Court likewise rejects Plaintiff's contention that Mr. Lefmann employed an incorrect legal standard by limiting his analysis to information known or reasonably anticipated as of the date of valuation. Code of Civil Procedure § 1263.320 provides

(a) The fair market value of the property taken is the highest price on the date of valuation that would be agreed to by a seller, being willing to sell but under no particular or urgent necessity for so doing, nor obliged to sell, and a buyer, being ready, willing, and able to buy but under no particular necessity for so doing, each dealing with the other with full knowledge of all the uses and purposes for which the property is reasonably adaptable and available.

(b) The fair market value of property taken for which there is no relevant, comparable market is its value on the date of valuation as determined by any method of valuation that is just and equitable.

A hypothetical buyer and seller in this situation are deemed to have full knowledge of all uses and purposes for which the property is reasonably acceptable and available, including the nature and scope of the proposed public project as reflected in the Resolution of Necessity and project plans. Mr. Lefmann's methodology in evaluating the property's after condition from the perspective of knowledgeable market participants as of the valuation date, rather than relying upon hindsight or events occurring after that date is not erroneous.

Despite Defendant's argument that post-valuation events differed from anticipated project impacts does not render the opinion inadmissible. Whether Mr. Lefmann's assumptions accurately reflect what knowledgeable market participants would have anticipated on the valuation date presents a factual issue for cross-examination and competing expert testimony.

Plaintiff's request to exclude all testimony of Mr. Lefmann as to severance damages is denied.

TENTATIVE RULING #2:

PLAINTIFF'S REQUEST TO EXCLUDE ALL TESTIMONY OF MR. LEFMANN AS TO SEVERANCE DAMAGES IS DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

July 17, 2026
Dept. 9
Civil Tentative Rulings

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.